

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 12, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Ken Esquibel. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon inquiry, Mayor Orr and Kris Jones, City Clerk, explained that due to a clerical error, agenda items #18 and #19 were inadvertently referred to the Finance Committee and are instead referred to the Public Services Committee. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 22, 2019. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6, 1.1.7, and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 6.5.4.c to modify allowances for Electronic Message Centers. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook and Dr. Rinne voting “no”. (#4280)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 2975 and Ordinance No. 3297 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for all of Block 596 and the westerly 40 feet of the vacated right of way of House Avenue between East 7th and 8th Streets, Original City of Cheyenne, Wyoming (located east of I-180 between 7th and 8th Streets). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#4281)

ORDINANCE – 3rd READING – Vacating all portions of non-vacated: alley, adjoining half-street right of way of 12th Street, and adjoining half-street right of way of Holmes Avenue; of Block 168, Interior Heights, 2nd Filing; and all of Center Drive west of the west line of Harmony Center 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located north of and adjacent to West College Drive, west of Walterscheid Boulevard). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4282)

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4 and 5.1.4 of the UDC to clarify definitions for entertainment and recreation land uses; to create a new entertainment and recreation – Other Land Use; and to allow these uses in various zoning districts as administrative, conditional or principal permitted uses. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#4283)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, the three hundred foot (300’) wide right-of-way of U.S. Highway No. 30, situated in a portion of Sections 26, 27 and 34, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, (located between Cleveland Avenue and Hayes Avenue). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body present. (#4284)

ORDINANCE – 2nd READING – Amending Chapter 8.64, Smoking in Public Places, within Title 8, Health and Safety, of the Municipal Code for the City of Cheyenne, Wyoming. Amy Spieker, Cheyenne Regional Medical Center, provided statistical information relating to the harmful effects of smoking and supported smoke free indoor environments in public places. Olivia Hardy, Jr. High student, reported increased usage of vaping devices with underage students and voiced support for banning use in public places. Responding to Mayor Orr, Ms. Hardy reported she would support changing the age a person is legally able to purchase vaping or smoking products to 21 years of age. Regina Hughes and Amanda Rieke, Straight Line Vapors, voiced support for stricter enforcement relating to underage smoking/vaping violators and provided information relating to the positives of vaping which assist smokers to quit and air quality. They further commented on the positive effects vaping has had on regular cigarette smokers supporting them to quit. Brittney Wardle, Cheyenne Regional Medical Center, reported studies show that vaping devices emit chemicals into the air exposing non-users which has been associated to potential increases in asthma diagnosis. David Allen, Tobacco Compliance Officer, Cheyenne Police Department, advised the department supports the proposed amendment. Jason Mintzer, American Cancer Society Director, reported studies show vaping devices can include up to 31 ingredients that produce/contain chemicals (some potential cancer causing that are emitted into the air whether or not they contain nicotine). Mr. Mintzer requested consideration to include in the proposed amendment: 1-Strengthen the definition of Electronic Smoking Device, 2-Include hotels and motels, 3-Include private residences which are licensed child care, adult day care, pre-schools, or health facilities and stated he has started a petition supporting those changes. Upon inquiry, Mr. Mintzer confirmed he would support enforcement when the device is being “carried” and lighted or heated. Mike Morrison, American Heart Association, voiced support and commented

on exposure to secondhand inhalation. Marguerite Herman voiced support, reported increased use among high school users, and reiterated the addictiveness of nicotine. Krysta Reeve, Straight Line Vapors, provided information regarding requiring product labeling and voiced opposition to the amendment. Cheyenne Kise voiced opposition stating vaping products assisted her father in quitting nicotine products. Baily Early, Jr. High student, advised that changing the age to 21 years would not necessarily keep youth from obtaining the devices as older friends and siblings purchase and provide them to minors. Dr. Phyllis Sherrard, Cheyenne Regional Medical Center, provided information regarding the prevention needs assessment for Laramie County and advised teen/youth vaping device use has increased by approximately 32%. Patty Reiland, Mayor's Council for People with Disabilities, voiced support for the ordinance. Nick Vaughn, Poder Academy Secondary School Principle, reported nicotine addiction involving vaping devices is on the increase among youth at the school. Dr. Rinne moved to approve on second reading, seconded by Mr. Case. Mr. White moved to amend by substitute, seconded by Mr. Case. Comment was made related to medical necessity of prescription inhalers. Motion to amend carried. Voting "yes" – all members of the governing body present with the exception of Mr. Shanor and Mayor Orr voting "no". Further comments were made relating to expressing caution in banning legal substances and infringing on rights and lack of substantiated health risks regarding harmful effects of electronic device usage. Mr. White explained the purposed of the amendment is to include vaping devices, noting they were not in existence when the original smoking ban was approved. Discussion topics included: Ordinance language, enforcement, secondhand risk health reduction and nicotine addiction. Main motion as amended carried. Voting "yes" – all members of the governing body present with the exception of Mr. Shanor and Mayor Orr voting "no".

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, the south one hundred fifty feet (150') of Tract 119, all of Tract 120, and those portions of Tracts 135 and 136 north of the right-of-way for U.S. Hwy. No. 30, and all of vacated Cheyenne Street (60'), and the west ½ (25') of vacated Fillmore Ave., adjacent to said tracts, Sunnyside Addition Fourth Filing, situate in a portion of the SE1/4 SE1/4 of Section 27, Township 14N, Range 66W of the 6th P.M., Laramie County, Wyoming. (located south of the intersection of Fillmore Avenue and Charles Street -- referred to Public Services Committee.

ORDINANCE – 1st READING – Pursuant to Section 2.2.2 - Planned Development Regulating Plan, Section 2.4.1 - Zoning Text Amendment, and Section 5.6.2 - Planned Unit Development amendment, amending the Sweetgrass Planned Unit Development (PUD) Regulating Plan for 2,349.54 acre Sweetgrass PUD, City of Cheyenne, Laramie, County, Wyoming (located south of West College Drive and east of Avenue C) -- referred to Public Services Committee.

ORDINANCE – 1st READING – Submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Wednesday, October 16, 2019, the following Question: "Shall a Special Assessment of twenty (20) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions

of Wyo. Stat. §15-9-217(b) for the purpose of (1) administrative costs; (2) landscaping or maintenance of public areas; (3) planning or management of development or improvement activities; (4) promotion of public events; (5) activities in support of business recruitment and development?" -- referred to Finance Committee.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Harmony Valley, First Filing, a plat of a portion of the S1/2 of Section 7 and the SE1/4 NE1/4 of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, (located north of and adjacent to W. College Drive, west of Walterscheid Boulevard). Dr. Rinne moved to adopt, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute and revised map dated August 6, 2019, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6005)

[CA] RESOLUTION – Re-appropriating the fiscal year 2019 budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 -- referred to Finance Committee.

[CA] RESOLUTION – Acknowledging receipt of the Archer Trails Connector Plan -- referred to Public Services Committee.

[CA] RESOLUTION – Acknowledging receipt of the Parsley Boulevard Corridor Study -- referred to Public Services Committee.

[CA] Preliminary Plat for Center Point Subdivision, 2nd Filing, a replat of Lots 1 through 7, Block 1, inclusive Center Point Subdivision, Cheyenne, Wyoming (located at the southwest corner of the intersection of Homestead Avenue and Eda Place) -- referred to Public Services Committee.

[CA] Grant agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the Office of Youth Alternatives (CRMC Grant). Motion (per Consent Agenda) carried. (#7038)

[CA] Contract between the City of Cheyenne, Youth Alternatives and the Laramie County Community Juvenile Services Joint Powers Board (Wyo. Dept. of Family Services Grant). Motion (per Consent Agenda) carried. (#7039)

[CA] Grant agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for the implementation of a program to identify health priorities that will benefit the community and aligns with community needs assessment (CRMC Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$131,030.24). (#7040)

[CA] Real Property Lease No. 8-09466 between the State of Wyoming, Department of Administration & Information, General Services Division, and the City of Cheyenne, for the lease of parking spaces located at the Cox Parking Structure to be used by the State (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$88,560.00). (#7041)

[CA] Professional Services Agreement between the City of Cheyenne and Burns and McDonnell, Bloomington, MN, for the Landfill Front Entrance and Scale House Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$197,500.00). (#7042)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2019-2020 school year and summer school 2020 (Revenue to the City). Motion (per Consent Agenda) carried. (#7043)

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for animal control and animal shelter services (Economic Support funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$612,500.00). (#7044)

[CA] Human Services Agreement with United Way of Laramie County to provide services to create the Human Service Advisory Committee (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$10,500.00). (#7045)

[CA] Human Services Agreement with United Way of Laramie County to provide services to various community programs (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$500,00.00). (#7046)

[CA] Contract between the City of Cheyenne and Peak Wellness, Alcohol Receiving Center, to provide alcohol and drug detoxification services to individuals (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$114,955.00). (#7047)

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$50,000.00). (#7048)

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$17,500.00). (#7049)

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for the Weed and Pest Division (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$3,750.00). (#7050)

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Community Recreation and Events softball and baseball fields (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$23,438.00). (#7051)

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Street and Alley and Compost operations (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$32,812.00). (#7052)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department and Wilson & Company, Inc., Denver, CO, for the design of the Reed Avenue Rail Corridor Design Project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$559,729.00). (#7053)

[CA] Agreement between the City of Cheyenne, Office of Cheyenne Youth Alternatives, and Laramie County for Juvenile Probation Services. (revenue to the City) -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and the Airport Golf Club, Inc. -- referred to Finance Committee.

[CA] Grant of access easement between the City of Cheyenne and Joseph M. Dyson for a 60 foot wide access easement across City-owned land in the NE1/4NE1/4 of Section 23, Township 13 North, Range 68 West, 6th P.M., Laramie County Wyoming -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and OpenCities, Inc., San Francisco, California, for the implementation of a Web-Enabled Content Management System which includes website re-design, development, maintenance and hosting of the City's Website. (General Fund) -- referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Yolanda Ronnau for Crime Victim Assistance Services. (Wyoming Division of Victim Services Grant) -- referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Brenda Johnson for Crime Victim Assistance Services. (Wyoming Division of Victim Services Grant) -- referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Jessica A. Fritz for Crime Victim Assistance Services. (Wyoming Division of Victim Services Grant) -- referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Leslie Burch for Crime Victim Assistance Services. (Wyoming Division of Victim Services Grant) -- referred to Finance Committee.

[CA] Contract Modification #3 to Contract No. 6839 between the City of Cheyenne and Reiman Corporation, Cheyenne, for final construction of the Civic Center Commons Project. (1% Sales Tax 2019-2022) -- referred to Finance Committee.

[CA] Consideration of Bid #S-22-19 for a contract between the City of Cheyenne and American Contracting of Wyoming, Cheyenne, Wyoming, for the Cheyenne Regional Airport Fountain Partial Restoration Project. (Certified Local Government Grant, Wyoming Cultural Trust Fund

Grant, Historic Preservation Board, and Leadership Cheyenne Class of 2016) -- referred to Finance Committee.

[CA] Report of Community Facility Fees Fiscal Year 2018-2019 -- referred to Finance Committee.

Announcement of a Public Hearing to be held August 26, 2019 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a proposed trade of real property owned by the City of Cheyenne, described as Lots 1 and 2, Block 1, Clear Creek Subdivision, 1st Filing, and Lot 1, Block 1, Clear Creek Subdivision, 2nd Filing, Laramie County, Wyoming, Consisting of 419.57 acres and having an appraised value of \$1,004,000.00, to Mariah, LLC, for real property owned by Mariah, LLC, described as all of Sections 11 and 14, lying north of the Union Pacific Railroad right-of-way, Township 12 North, Range 70 West of the 6th P.M., Laramie County, Wyoming, consisting of 543.76 acres and having an appraised value of \$1,060,000.00.

Announcement of a Public Hearing to be held August 26, 2019 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a proposed sale of undeveloped public property described as a 1.46 acre portion of Lot 1, Block 1, Cheyenne Ice & Events Center, 1st Filing, City of Cheyenne, Laramie County, Wyoming, with an appraised value of \$293,000.00 to John J. Koehler.

Under other business:

Joe Dougherty commented on release of retainage to Reiman Corp. involving the Civic Center Commons Project with respect to cracking concrete and requested an update regarding a time frame for when the contractor would be repairing or replacing deficient concrete. Mayor Orr advised the contractor was also selected for the Christensen Overpass Project which they are currently under construction. Amy Allen, City Engineer, reported there is a punch list of items they will be returning to repair and advised they are currently working on coordinating that time frame. Mr. Dougherty encouraged the governing body to follow up on completion of the contractor's punch list.

Mr. Laybourn voiced concern relating to failing/cracking concrete throughout the city involving city streets and the Wyoming Department of Transportation in relation to state highways running through and around the city, use of tax payer funding for these projects and encouraged members of the governing body to set standards for the future to hold contractors accountable.

Mr. Case inquired as to the process for street sweeping. Vicki Nemecek, Public Works Director, advised currently the department is understaffed and reported difficulty in recruiting employees due to limitations on the amount of wages that can be offered. Ms. Nemecek provided a summary of the current process of street sweeping relating to commercial and residential areas, noting members of the public are welcome to make requests for services that would be placed on a waiting list.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:16 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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